

Sri. S Kushal Raj vs The State Of Karnataka on 21 January, 2026

Author: M.Nagaprasanna

Bench: M.Nagaprasanna

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NC: 2026:KHC:3624
WP No. 1508 of 2026

HC - KAR

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 21ST DAY OF JANUARY, 2026

BEFORE

THE HON'BLE MR. JUSTICE M.NAGAPRASANNA

WRIT PETITION NO. 1508 OF 2026 (GM-RES)

BETWEEN:

1. SRI. S KUSHAL RAJ
AGED ABOUT 40 YEARS
S/O SRI. SHANTARAJ,
R/A NO.384, GROUND FLOOR,
8TH MAIN, II STAGE, 'A' BLOCK,
MALLESHWARAM WEST,
BENGALURU 560 055.
2. SMT. MANJULA
(ACTUALLY, KNOWN AS
SMT. M.S. RAJARAJESHWARI)
AGED ABOUT 62 YEARS,
W/O SRI. SHANTARAJ, R/A NO.384,
GROUND FLOOR, 8TH MAIN,
II STAGE, 'A' BLOCK,
MALLESHWARAM WEST,
BENGALURU 560 055.
3. SRI. M.S. VIJAYASARATHY
AGED ABOUT 55 YEARS
S/O OF LATE SRI. M.V. SIVANANJAPPA
R/A GIRIAMMA, NO. 405,
GROUND FLOOR, 7TH MAIN, II STAGE,
'A' BLOCK, MALLESHWARAM WEST,
BENGALURU 560 055.

Digitally
signed by
NAGAVENI
Location:
High Court
of Karnataka

4. SMT. M.S. SHANTHALA
AGED ABOUT 53 YEARS,
W/O. SRI. A. DEVABHANU,
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R/A NO.316(16), ABHISTA NILAYA,
9TH MAIN, II STAGE, 'A' BLOCK,
MALLESHWARAM WEST,
BENGALURU 560 055.

...PETITIONERS

(BY SRI. SATYANARAYAN CHALKE., ADVOCATE)

AND:

1. THE STATE OF KARNATAKA
REP. BY SHO
BHADRAVATHI OLD TOWN POLICE STATION
REP. BY SPP
HIGH COURT BUILDING
DR.B.R.AMBEDAKAR VEEDHI
BENGALURU - 560 001

2. SMT.SWETHARANI S.B.
AGED ABOUT 38 YEARS,
W/O MR.KUSHAL RAJ
D/O SRI.BETTEGOWDA
R/AT ANUGRAHA NILAYA 2ND CROSS
SIDDARUDA NAGARA
BHADRAVATHI
SHIVAMOGA - 577301

...RESPONDENTS

(BY SRI.VINAY MAHADEVAIAH, HCGP FOR R1;
SMT. ANURADHA S.K., ADVOCATE FOR R2)

THIS WRIT PETITION IS FILED UNDER ARTICLE 226 OF
THE CONSTITUTION OF INDIA PRAYING TO QUASH THE
ENTIRE FIR IN CRIME NO. 0038/2022 DATED 31.03.2022 OF
THE R1 POLICE STATION REGISTERED FOR THE OFFENCES
PUNISHABLE UNDER SECTION 498-A, 504 AND 506 READ
WITH SECTION 34 OF THE IPC AND FOR THE OFFENCES
PUNISHABLE UNDER SECTIONS 3 AND 4 OF THE DOWRY
PROHIBITION ACT IN SO FAR AS THE PETITIONERS ARE
CONCERNED ANNEXURE-A.

THIS PETITION, COMING ON FOR PRELIMINARY

HEARING, THIS DAY, ORDER WAS MADE THEREIN AS UNDER:

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CORAM: HON'BLE MR. JUSTICE M.NAGAPRASANNA

ORAL ORDER

The petitioners are before this Court calling in question registration of a crime in crime No.0038/2022 registered for the offence punishable under Sections 498-A, 504 and 506 read with Section 34 of the Indian Penal Code, 1860 ('the IPC' for short) and Sections 3 and 4 of the Dowry Prohibition Act.

2. Heard Sri. Satyanarayan Chalke, learned counsel appearing for the petitioners, Sri. Vinay Mahadevaiah, learned High Court Government Pleader appearing for respondent No.1 and Smt. Anuradha S.K., learned counsel appearing for respondent No.2 and have perused the material on record.

3. The parties to the lis were also before the Family Court in M.C.No.1559/2022 and have settled the dispute amongst themselves before the Family Court by terms of settlement. One of the term of the settlement is, closure of the present proceedings. The said term in the settlement reads as follows:

NC: 2026:KHC:3624 HC-KAR "COMPROMISE PETITION FILED UNDER ORDER XXIII RULE 3 READ WITH SECTION 151 OF THE CODE OF CIVIL PROCEDURE.

1. The Petitioner has filed the above petition seeking annulment of marriage with Respondent performed on 25.11.2020 as per Hindu customs at Sree Thirumala Venkateshawara Swamy Temple, JP Nagar, Bengaluru as null and void and to pass appropriate orders those are necessary in the circumstances of the case under Section 12 (1) (c) of the Hindu Marriage Act. Upon notice, the Respondent appeared and filed her Statement of Objection.

2. Other than this petition, there are certain other cases initiated by the Respondent and her mother against the Petitioner and his family members and likewise the Petitioner has Initiated cases against the Respondent and her mother before various courts. The following are the details of such proceedings:

a. CC No.2257/2022 pending on the file of XXXII ACMM, Bengaluru, commenced based on the complaint given by the petitioner against the respondent and her mother Smt. Shanthamma.

b. Crime No.38/2022, pending investigation in Bhadravathi Rural Police Station, on the file of Addl Civil Judge (Jr Dvn) and JMFC II, Bhadravathi, Shimogga District, registered based on the complaint given by Respondent against the Petitioner and others.

c. Crime No. 179/2023, pending investigation in Bhadravathi Old Town Police Station, on the file of Addl Civil Judge (Jr Dvn) and JMFC II, Bhadravathi, Shimogga District, registered based on the complaint given by Smt. Shanthamma, the mother of the Respondent against the one Sri Gururaj, Petitioner and others.

NC: 2026:KHC:3624 HC-KAR d. Cri Misc No. 175/2022 pending on the file of II Additional Civil Judge and JMFC, Bhadravathi, seeking maintenance under DV Act, Initiated by Respondent against the petitioner and others.

e. Cri Misc No. 180/2024, pending on the file of II Addl Civil Judge and JMFC, Bhadravathi, seeking maintenance under DV Act, Initiated by Respondent against the petitioner and others.

3. It is submitted that the parties have been duly advised by their common friends and relatives to settle the matter amicably.

Accordingly, the parties have agreed to settle all the lis between them. Accordingly, they have settled their differences and have filed this Compromise Petition.

4. The Respondent had honestly believed that her mother had Informed the Petitioner and his parents about her previous engagement with other person which broke and other litigation which she had filed prior to getting engaged and married with the Petitioner herein. It is submitted that post marriage between treated the the petitioner and respondent, respondent as his wife, nor the respondent has treated the petitioner as her husband and the marriage is not consummated. As such, the respondent does not have any objection to annul the marriage between the petitioner and the respondent as prayed for in this petition.

5. The petitioner has voluntarily come forward to pay in all a sum of Rs.22,00,000/- (Rupees Twenty-Two Lakhs only) to the Respondent on account of the expenditure Incurred for the performance of the marriage from her side, which is paid this day by way of demand draft drawn in the name of the respondent bearing No.929534, dated 11/12/2025, drawn on DCB Bank Limited, NC: 2026:KHC:3624 HC-KAR Rajajinagar Branch, Bengaluru. It is specifically understood by the Respondent that she is not entitled to any alimony from the Petitioner and she has given up all her claims against the petitioner in this regard.

6. The parties would co-operate with each other in getting the other proceedings detailed above as withdrawn/quashed/compounded as the case may be as settled out of court within a month from this day.

7. Both the parties submit that other cases pending before the respective courts as detailed above and the complaints which are being Investigated, there are no other cases, complaints filed against each other and pending consideration before any courts or investigating agencies. The parties have agreed that upon closure of the aforesaid cases, the petitioner would be undertaking to return back all the belongings of the respondent kept in the house of the petitioner. Similarly, the respondent would undertake to return back all the belongings of the petitioner currently with the custody of the respondent. Both the parties further undertake that they would not Indulge any such on a later date.

8. The parties have entered into this compromise petition voluntarily by understanding the consequences and terms and conditions of this compromise petition without there being any kind of coercion or threat of any nature.

WHEREFORE, the parties most humbly prays that this Hon'ble Court may be pleased to allow the above petition by annulling the marriage between the parties under Section 12 (1) (c) of the Hindu Marriage Act in the interest of justice and equity.

Dated this the 15th day of December, year 2025, at Bengaluru."

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4. Therefore, in light of the settlement arrived at between the parties quoted supra, I deem it appropriate to terminate the proceedings pending against these petitioners in the subject petition.

5. For the aforesaid reasons, the following:

ORDER

(i) Criminal Petition is disposed.

(ii) Registration of a crime in crime No.0038/2022 pending on the file of Additional Civil Judge (Jr.Dn) & JMFC-2 Court, Bhadravathi, Shimoga District stands quashed, qua the petitioners.

Sd/-

(M.NAGAPRASANNA) JUDGE JY List No.: 1 Sl No.: 2